

absence of statement of the purpose for which the money is wanted will not make a purchaser or mortgagee liable on the ground of presumed knowledge that the money was to be applied otherwise than for payment of debts (*c*). So if the trust be for payment of a *particular* debt named, and of the testator's *other* debts (*d*). So if the trust be for payment of debts and *legacies*, the purchaser is equally protected; for as the discharge of the debts must precede that of the legacies, and the purchaser is not called upon to mix himself up with the settlement of the debts, he is necessarily absolved from all liabilities in respect of the legacies (*e*).

8. **Scheduled debts or legacies.**— But if the trust [*457] be for payment of *particular* or *scheduled* * *debts only* (*a*), or of *legacies only* (*b*), then, as there is no trust to be executed requiring time or discretion, but the purchase-money is simply to be distributed amongst certain parties, there is no reason why the purchaser should not, under the general rule, be expected to see that the purchase-money finds its way into the proper channel.

Late Assets Act.— And the purchaser, where legacies only are charged, is still bound to see to the application of his

78; *Smith v. Guyon*, 1 B. C. C. 186, and cases cited *Ib.* note; *Ithell v. Beane*, 1 Ves. 215; *per Lord Hardwicke*; *Lloyd v. Baldwin*, *Ib.* 173, *per eundem*; *Dolton v. Hewen*, 6 Mad. 9; *Ex parte Turner*, 9 Mod. 418, *per Lord Hardwicke*; *Gosling v. Carter*, 1 Coll. 644; *Eland v. Eland*, 1 Beav. 235; S. C. 4 M. & Cr. 420; *Jones v. Price*, 11 Sim. 557; *Currer v. Walkley*, 2 Dick. 649, corrected from Reg. Lib. 3 Sugd. Vend. & Purch. 168, 10th ed.

(*c*) *Corser v. Cartwright*, 7 L. R. H. L. 731.

(*d*) *Robinson v. Lowater*, 17 Beav. 502; 5 De G. M. & G. 272.

(*e*) *Rogers v. Skillicorne*, Amb. 188; *Smith v. Guyon*, 1 B. C. C. 186; *Jebb v. Abbott*, and *Benyon v. Gollins*, cited Co. Lit. 290 b. note by Butler; *Williamson v. Curtis*, 3 B. C. C. 96; *Johnson v. Kennett*, 3 M. & K. 630; *per Lord Lyndhurst*; 6 Ves. 654, note (*a*); *Watkins v. Cheek*, 2

S. & S. 205, *per Sir J. Leach*; *Eland v. Eland*, 1 Beav. 235; S. C. 4 M. & Cr. 420; *Page v. Adam*, 4 Beav. 269; *Forbes v. Peacock*, 12 Sim. 528; 1 Ph. 717.

(*a*) *Doran v. Wiltshire*, 3 Sw. 701, *per Lord Thurlow*; *Smith v. Guyon*, 1 B. C. C. 186, *per eundem*, and cases cited, *Ib.* note; *Rogers v. Skillicorne*, Amb. 189, *per Lord Hardwicke*; *Humble v. Bill*, 1 Eq. Ca. Ab. 359, *per Sir N. Wright*; *Anon. Mos.* 96; *Spalding v. Shalmer*, 1 Vern. 303, *per Lord North*; *Abbot v. Gibbs*, 1 Eq. Ca. Ab. 358; *Elliot v. Merryman*, Barn. 81, *per Sir J. Jekyll*; *Binks v. Rokeby*, 2 Mad. 238, *per Sir T. Plumer*; *Ithell v. Beane*, 1 Ves. 215, *per Lord Hardwicke*; *Lloyd v. Baldwin*, 1 Ves. 173, *per eundem*; and see *Dunch v. Kent*, 1 Vern. 260; *Culpepper v. Aston*, 2 Ch. Ca. 223.

(*b*) *Johnson v. Kennett*, 3 M. & K. 930; *Horn v. Horn*, 2 S. & S. 448.